

Rationalisation of Forms and Reports under Certain Labour Laws Rules, 2017

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Union of India - Act

Rationalisation of Forms and Reports under Certain Labour Laws Rules, 2017

UNION OF INDIA

India

Rationalisation of Forms and Reports under Certain Labour Laws Rules, 2017

Rule RATIONALISATION-OF-FORMS-AND-REPORTS-UNDER-CERTAIN-LABOUR-LAWS-RULES-2017 of 2017

Published on 28 March 2017

Commenced on 28 March 2017

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Rationalisation of Forms and Reports under Certain Labour Laws Rules, 2017

Published vide Notification No. G.S.R. 294(E), dated 28th March, 2017

Ministry of Labour and Employment

G.S.R. 294(E). - Whereas, for the ease of, and for the expedient compliance of the requirements of certain labour related laws referred to herein and for the purpose of rationalisation of forms and reports so as to provide trust based efficient public service delivery, it has become essential to frame separate rules;

And whereas, the intention to provide for combined and simplified forms and reports is to sub-serve the purposes, electronically or otherwise, of the said labour related laws and the rules made thereunder, wherein provisions have been made for use of such forms and reports;

And whereas, the combined and simplified forms and reports provided under these rules will facilitate ease of compliance and inspection, being as simple as possible and making the information provided thereunder easily accessible to the public thereby increasing transparency;

And whereas, making separate rules for the aforementioned purpose will benefit making use of the forms and reports provided under different labour related laws simple, which will serve public purpose in a better way;

And whereas, to achieve the aforementioned purposes, the draft rules, namely, the Rationalisation of Forms and Reports under Certain Labour Laws Rules, 2017 were published vide notification of the Government of India in the Ministry of Labour and Employment, number G.S.R. 116(E), dated, the 9th February, 2017, in the Gazette of India, Extraordinary, Part II, section 3, sub-section (i), inviting objections and suggestions from all persons likely to be affected thereby on or before the expiry of a period of thirty days from the date on which the copies of the Official Gazette containing the said notification were made available to the public;

And whereas, the copies of the said Official Gazette were made available to the public on the 9th February, 2017;

And whereas, no objections and suggestions were received from public on the said draft rules;

Now, therefore, to achieve the aforementioned purposes, the Central Government, in exercise of the powers conferred by,-

(a) section 35 of the Contract Labour (Regulation and Abolition) Act, 1970 (37 of 1970

);

(b) section 35 of the Inter-State Migrant Workmen (Regulation of Employment and Conditions of Service) Act, 1979 (30 of 1979

); and

(c) section 62 of the Building and Other Construction Workers (Regulation of Employment and Conditions of Service) Act, 1996 (27 of 1996

), consultation with the expert committee;

read with Chapter III of the Information Technology Act, 2000 (21 of 2000

), hereby makes the following rules, namely:-

1.

Short title and commencement.

(1)

These rules may be called the Rationalisation of Forms and Reports under Certain Labour Laws Rules, 2017.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Maintenance of Forms under certain labour related laws.

(1)

Notwithstanding anything contained in any rules made under -

(i)

the Contract Labour (Regulation and Abolition) Act, 1970 (37 of 1970

);

(ii)

the Inter-State Migrant Workmen (Regulation of Employment and Conditions of Service) Act, 1979 (30 of 1979

); and

(iii)

the Building and Other Construction Workers (Regulation of Employment and Conditions of Service) Act, 1996 (27 of 1996

),

the Forms specified in the Schedule annexed to these rules shall be maintained either electronically or otherwise and

used for the purposes of the aforesaid enactments and the rules made thereunder, as specified therein.

(2)

If the Forms referred to in sub-rule (1) are required for inspection by the concerned Inspector appointed under any of the enactments referred to in the said sub-rule, the concerned persons shall make available such Forms or provide the necessary particulars for the purposes of accessing the information, as the case may be.

3.

Amendment of certain rules.

- The following rules shall be amended, except as respects things done or omitted to be done before such amendment, in the manner specified below, namely :-

(i)

in the Contract Labour (Regulation and Abolition) Central Rules, 1971,-

(A)

in rule 18,-

(a)

in sub-rule (1), for the words and figures "in Form II", the words and figures "in Form I annexed to the Rationalisation of Forms and Reports under Certain Labour Laws Rules, 2017" shall be substituted;

(b)

in sub-rule (2), in clause (a), the words "and address" shall be omitted;

(B)

in rule 21,-

(a)

in sub-rule (1), for the words and figures "in Form IV", the words and figures "in Form II annexed to the Rationalisation of Forms and Reports under Certain Labour Laws Rules, 2017" shall be substituted;

(b)

in sub-rule (2), for the words and figure "in Form V", the words and figures "in Form III annexed to the Rationalisation of Forms and Reports under Certain Labour Laws Rules, 2017" shall be substituted;

(C)

in rule 24, in sub-rule (1A), for the words, figure and letter "in Form VA", the words and figures "in Form V annexed to the Rationalisation of Forms and Reports under Certain Labour Laws Rules, 2017" shall be substituted;

(D)

in rule 25,-

(a)

in sub-rule (1), for the words and figures "in Form VI", the words and figures "in Form VI annexed to the Rationalisation of Forms and Reports under Certain Labour Laws Rules, 2017" shall be substituted;

(b)

in sub-rule (2),-

(I)

in clause (iv), after the words "settlement or award", the words "or by the appropriate Government" shall be inserted;

(II)

in clause (viii), for the words, figures and letter "in Form VIA", the words and figures "in Form VII annexed to the Rationalisation of Forms and Reports under Certain Labour Laws Rules, 2017" shall be substituted;

(E)

in rule 29, in sub-rule (2), for the words and figures "in Form VII", the words and figures "in Form II annexed to the Rationalisation of Forms and Reports under Certain Labour Laws Rules, 2017" shall be substituted;

(F)

rule 32 shall be omitted;

(G)

in rule 76, in clause (i), for the words and figures "in Form XIV", the words and figures "in Form XII annexed to the Rationalisation of Forms and Reports under Certain Labour Laws Rules, 2017" shall be substituted;

(H)

in rule 77, for the words and figures "in Form XV", the words and figures "in Form VIII annexed to the Rationalisation of

Forms and Reports under Certain Labour Laws Rules, 2017" shall be substituted;

(I)

in rule 81, in sub-rule (3), for the words, figures and letter "in Form VI B", the words and figures "in Form VII annexed to the Rationalisation of Forms and Reports under Certain Labour Laws Rules, 2017" shall be substituted; and

(J)

Forms II, IV, V, VA, VI, VIA, VIB, VII, VIII, IX, X, XI, XIV and Form XV shall be omitted;

(ii)

in the Inter-State Migrant Workmen (Regulation of Employment and Conditions of Service) Central Rules, 1980,-

(A)

in rule 4, in sub-rule (1), for the words and figures "in Form II", the words and figures "in Form I annexed to the Rationalisation of Forms and Reports under Certain Labour Laws Rules, 2017" shall be substituted;

(B)

in rule 7,-

(a)

in sub-rule (1), for the words and figures "in Form IV", the words and figures "in Form II annexed to the Rationalisation of Forms and Reports under Certain Labour Laws Rules, 2017" shall be substituted;

(b)

in sub-rule (2), for the words and figure "in Form V", the words and figures "in Form II annexed to the Rationalisation of Forms and Reports under Certain Labour Laws Rules, 2017" shall be substituted;

(c)

in sub-rule (3), in clause (i), for the words and figures "in Form IV", the words and figures "in Form III annexed to the Rationalisation of Forms and Reports under Certain Labour Laws Rules, 2017" shall be substituted;

(C)

in rule 10, in sub-rule (3), for the words and figures "in Form VII", the words and figures "in Form V annexed to the Rationalisation of Forms and Reports under Certain Labour Laws Rules, 2017" shall be substituted;

(D)

in rule 11,-

(a)

in sub-rule (1), for the words and figures "in Form VIII", the words and figures "in Form VI annexed to the Rationalisation of Forms and Reports under Certain Labour Laws Rules, 2017" shall be substituted;

(b)

in sub-rule (2), in clause (v), after the words "settlement or award", the words " or by the appropriate Government" shall be inserted;

(E)

in rule 14, in sub-rule (2), for the words and figures "in Form IX", the words and figures "in Form II annexed to the Rationalisation of Forms and Reports under Certain Labour Laws Rules, 2017" shall be substituted;

(F)

in rule 21, in sub-rule (1), for the words and figure "in Form X", the words and figures "in Form X annexed to the Rationalisation of Forms and Reports under Certain Labour Laws Rules, 2017" shall be substituted;

(G)

in rule 24, for the words and figures "in Form XI", the words and figures "in Form X annexed to the Rationalisation of Forms and Reports under Certain Labour Laws Rules, 2017" shall be substituted;

(H)

in rule 50, for the words and figures "in Form XIV", the words and figures, "in Form VIII annexed to the Rationalisation of Forms and Reports under Certain Labour Laws Rules, 2017" shall be substituted; and

(I)

Forms II, IV, V, VI, VII, VIII, IX, X, XI and Form XIV shall be omitted;

(iii)

in the Building and Other Construction Workers' (Regulation of Employment and Conditions of Service) Central Rules, 1998,-

(A)

in rule 24, in sub-rule (1), for the words and figures "in Form II annexed to these rules", the words and figures "in Form I annexed to the Rationalisation of Forms and Reports under Certain Labour Laws Rules, 2017" shall be substituted;

(B)

in rule 26, in sub-rule (3), for the words and figures "in Form IV annexed to these rules", the words and figures "in Form VII annexed to the Rationalisation of Forms and Reports under Certain Labour Laws Rules, 2017" shall be substituted;

(C)

in rule 74, in sub-rule (b),-

(a)

in clause (i),-

(I)

in sub-clause (a), for the words and figure "in Form V annexed to these rules", the words and figures "in Form IV annexed to the Rationalisation of Forms and Reports under Certain Labour Laws Rules, 2017" shall be substituted;

(II)

in sub-clause (b), for the words and figures "in Form VI annexed to these rules", the words and figures "in Form IV annexed to the Rationalisation of Forms and Reports under Certain Labour Laws Rules, 2017" shall be substituted;

(b)

in clause (ii), for the words and figures "in Form VII annexed to these rules", the words and figures "in Form IV annexed to the Rationalisation of Forms and Reports under Certain Labour Laws Rules, 2017" shall be substituted;

(c)

in clause (iii), for the words and figures "in Form VIII annexed to these rules", the words and figures "in Form IV annexed to the Rationalisation of Forms and Reports under Certain Labour Laws Rules, 2017" shall be substituted;

(d)

in clause (iv), for the words and figures "in Form IX annexed to these rules", the words and figures "in Form IV annexed to the Rationalisation of Forms and Reports under Certain Labour Laws Rules, 2017" shall be substituted;

(D)

in rule 210, in sub-rule (7), for the words and figures "in Form XIV", the words and figures "in Form XI annexed to the Rationalisation of Forms and Reports under Certain Labour Laws Rules, 2017" shall be substituted;

(E)

in rule 223, in clause (c), for the words and figures "in Form XI annexed to these rules", the words and figures "in Form IX annexed to the Rationalisation of Forms and Reports under Certain Labour Laws Rules, 2017" shall be substituted;

(F)

in rule 230, in clause (a), for the words and figures "in Form XIII annexed to these rules", the words and figures "in Form XI annexed to the Rationalisation of Forms and Reports under Certain Labour Laws Rules, 2017" shall be substituted;

(G)

in rule 239, in sub-rule (1), for the words and figures "in Form IV annexed to these rules", the words and figures "in Form VII annexed to the Rationalisation of Forms and Reports under Certain Labour Laws Rules, 2017" shall be substituted;

(H)

in rule 241, in sub-rule (2), in clause (b), for the words and figures "in Form XXIV annexed to these rules", the words and figures "in Form VIII annexed to the Rationalisation of Forms and Reports under Certain Labour Laws Rules, 2017" shall be substituted; and

(I)

Forms II, IV, V, VI, VII, VIII, IX, X, XI, XIII, XIV and Form XXIV shall be omitted.

Schedule

[See rule 2(1)]

Form I

[Under rule 18(1) of the Contract Labour (Regulation and Abolition) Central Rules, 1971;

rule 24(1) of the Building and Other Construction Workers' (Regulation of Employment and Conditions of Service) Central Rules, 1998; and rule 4(1) of the Inter-State Migrant Workmen (Regulation of Employment and Conditions of Service) Central Rules, 1980]

Certificate of Registration of Principal Employer/employer*

Date.....

Government of India

Office of the Registering Officer

A Certificate of Registration containing the following particulars is hereby granted under sub-section (2) of section 7 of the Contract Labour (Regulation and Abolition) Act, 1970 (37 of 1970

) */sub-section (3) of section 7 of the Building and Other Construction Workers (Regulation of Employment and Conditions of Service) Act, 1996 (27 of 1996

)/clause (a) of sub-section (2) of section 4 of the Inter-State Migrant Workmen (Regulation of Employment and Conditions of Service) Act, 1979 (30 of 1979

)* and the rule made there under to.....

1. Nature of work carried on in the establishment of the Principal Employer.

2. Names of Contractors.*

3. LIN/PAN No. of contractors *

4.

Email Id of contractors *

5.

Mobile No. of contractors *

6.

Nature of work of the contractor/employer* in which workman/building and other construction (BOC) worker* is employed or is to be employed.

7.

Maximum number of building and other construction (BOC) workers to be employed by the employer under the Building and Other Construction Workers' (Regulation of Employment and Conditions of Service) Act, 1996 (27 of 1996

)/workmen to be employed through each contractor under the Contract Labour (Regulation and Abolition) Act, 1970 (37 of 1970

) or under the Inter-State Migrant Workmen (Regulation of Employment and Conditions of Service) Act, 1979 (30 of 1979

)* on any day.

Signature of the Registering Officer with Seal.

* Please strike off whichever is not applicable.

Form II

[Under rule 21(1) and rule 29(2) of the Contract Labour (Regulation and Abolition) Central Rules, 1971; and rule 7(1), rule 7(2) and

rule 14(2) of the Inter-State Migrant Workmen (Regulation of Employment and Conditions of Service) Central Rules, 1980]

Application for Licence/Renewal of Licence under the Contract Labour (Regulation and Abolition) Act, 1970 (37 of 1970

)/ the Inter-State Migrant Workmen (Regulation of Employment and Conditions of Service) Act, 1979 (30 of 1979

)*:

A. Details of the contractor

1. Name of the contractor:

2. LIN/PAN No. of the contractor:

3. Email Id of the contractor:

4. Mobile No. of the contractor:

B. Details to be filled only in case of application for licence*

Particulars of Establishment where workman is to be employed-

(a)

Name of the Principal Employer:

(b)

Number and date of Certificate of Registration of the Establishment under the Act:

Particulars of Contract Labour-

(a)

Nature of work in which workman is employed or is to be employed in the Establishment:

(b)

Duration of the proposed contract work (please give particulars of proposed date of commencement and completion):

(c)

Name and address of the Agent or Manager of Contractor at the work-site ;

(d)

Maximum number of workmen proposed to be employed on the Establishment on any date:

(e)

Whether a certificate by the Principal Employer, in Form III is enclosed:

C. Details to be filled only in case of application for renewal of licence*

(a)

Number and date of the licence:

(b)

Date of expiry of the licence:

D. Details of licence fee and security deposit

(a)

Amount of licence fee, name of the Bank, demand draft No. and date / transaction no. and date in case the amount has been deposited in the notified bank account

(b)

Amount of security deposit, name of the Bank, demand draft No. and date / transaction no. and date in case the amount has been deposited in the notified bank account

Signature of the Applicant (Contractor)

Place

Date.....

* Please strike off whichever is not applicable.

(To be filled in the office of the Licensing Officer)

Date of receipt of the application with DD for fees/Security Deposit

Signature of the Licensing Officer

Form III

[Under rule 21(2) of the Contract Labour (Regulation and Abolition) Central Rules, 1971; and rule 7(3) of the Inter-State Migrant Workmen (Regulation of Employment and Conditions of Service) Central Rules, 1980]

Form of Certificate by Principal Employer

Certified that:

1. I have engaged the applicant (name of the contractor) as a contractor in my establishment for the work_____ to be carried out from _____(date) to _____(date).

2. I undertake to be bound by all the provisions of the Contract Labour (Regulation and Abolition) Act, 1970 (37 of 1970

) and the Contract Labour (Regulation and Abolition) Central Rules, 1971*/ the Inter-State Migrant Workmen (Regulation of Employment and Conditions of Service) Act, 1979 (30 of 1979

) and the Inter-State Migrant Workmen (Regulation of Employment and Conditions of Service) Central Rules, 1980* in so far as the provisions are applicable to me in respect of the employment of contract labour/inter-state migrant workmen* by the applicant in my establishment.

3. The engagement of contract labour in the said work is not prohibited under sub section(1) of section 10 of the Contract Labour (Regulation and Abolition) Act, 1970 (

37 of 1970

) or an award or a settlement.*

Place:

Date:

Signature of Principal Employer

Name and address of the establishment

*Please strike off whichever is not applicable.

Form - IV

[Under rule 56, rule 62, rule 69, rule 70, rule 72, rule 73, rule 74(b) and Schedule I of the Building and Other Construction Workers' (Regulation of Employment and Conditions of Service) Central Rules, 1998]

Certificate of Initial and Periodical Test and Examination of Various Appliances

(Please fill particulars as applicable)

1. Location of work

2. Registration number and date in respect of building and other construction work

Sl. No.

Appliance Category

Test Certificate No. and date of test

Situation and description with distinguishing
number or marks

Parameters of test and examination *

Test load applied

Safe work load as per Parameters in column 3

(Tonnes)

Specific Details

Name and address of public service,
association, company, or firm or testing establishment making the
test and examination

Name and position of the competent person of
public service association, company or firm or testing
establishment

1

2

3

4

5

6

7

8

9

10

1

Winches, Derricks and their Accessory Gear

(Lifting appliance and Gear) [rule 56, rule 74 (b) and Schedule I
of the Building and Other Construction Workers' (Regulation of
Employment and Conditions of Service) Central Rules, 1998]

(in tonnes)

.....

2

Cranes or Hoists and their Accessory Gear [rules

56 and 74 (b) of the Building and Other Construction Workers'
(Regulation of Employment and Conditions of Service) Central

Rules, 1998]
(in metres)

.....

3

Loose Gear (also, Initial test and examination
certificate No. and date to be indicated, in case of periodical
test) [rules 70 and 74(b) of the Building and Other Construction
Workers' (Regulation of Employment and Conditions of Service)
Central Rules, 1998]

(in tonnes)

(name and address of Manufacturer or supplier)

4

Wire Rope [rules 71 and 74 (b) of the Building
and Other Construction Workers' (Regulation of Employment and
Conditions of Service) Central Rules, 1998]
(name and address of maker or supplier)
(Quality of wire and intended use of wire rope)

5

Annealing of Loose Gears [rules 72 and 74 (b) of
the Building and Other Construction Workers' (Regulation of
Employment and Conditions of Service) Central Rules, 1998]

.....

.....

(Defects found at inspection after annealing)

6

Loose Gears exempted from Annealing [rules 69
and 73 of the Building and Other Construction Workers'
(Regulation of Employment and Conditions of Service) Central
Rules, 1998]

.....

.....

(Remarks)

* Specific parameters related to the category mentioned in col. (2) above are as indicated here below against their serial
number :-

Sl.No. Parameters

1. Angle to the horizontal of derrick boom at which test load applied.

2. For jib cranes-radius at which the test load was applied.

3. Number and material of loose gears tested.

4. (a) Circumference/diameter of rope (b) Number of strand (c) Number of wire per strand (d) Lay (e) Core.

5. Number of loose gears annealed with date of annealing.

6. Number of certificate of initial and periodical test and examination.

I certify that the above particulars relating to serial number..... are correct, and that the test and examination
were carried out in my presence and no defects affecting safe working condition were found other than those indicated
above.

.....

Signature of Competent Person with seal

Registration/ Authority number of the Competent Person.

Date.....

Form V

[Under rule 24(1-A) of the Contract Labour (Regulation and Abolition) Central Rules, 1971; and rule 10(3) of the
Inter-State Migrant Workmen (Regulation of Employment and Conditions of Service) Central Rules, 1980]

Application for Adjustment of Security Deposit

1. Name of the contractor :
2. LIN/PAN No. of the contractor :
3. Email Id of the contractor :
4. Mobile No. of the contractor :
5. Name of the principal employer :
6. LIN/PAN No. of the Principal Employer :
7. Email Id of the Principal Employer :
- 8.
- Mobile No. of the Principal Employer :
- 9.

Details of security deposit :

No. and date of licence
Date of expiry of previous licence
Whether the previous licence of the contractor
was suspended or revoked
Amount of previous security deposit
Amount, number and date of demand
draft/transaction slip of the balance security deposit deposited
if any
No. and date of certificate of registration of
the establishment in relation to which the fresh licence is
applied for
Name and location of fresh contract work

- (1)
- (2)
- (3)
- (4)
- (5)
- (6)
- (7)

Place:

Date:

Seal & Signature of the Applicant

Form VI

[Under rule 25(1) of the Contract Labour (Regulation and Abolition) Central Rules, 1971; and rule 11(1) of the Inter-State Migrant Workmen (Regulation of Employment and Conditions of Service) Central Rules, 1980]

Government of India

Office of the Licensing Officer

Licence

Licence No.

Dated Fee paid Rs.....

1. Licence is hereby granted tounder sub-section (1) of section 12 of the Contract Labour (Regulation and Abolition) Act, 1970 (

37 of 1970

) or sub-section (1) of section 8 of the Inter State Migrant Workmen (Regulation of Employment and Conditions of Service) Act, 1979(30 of 1979)* subject to the conditions specified in the Annexure.

2. Name and location of work

3. Name of the principal employer.

4. Registration Certificate no. and date of the principal employer.

5. The licence shall remain in force till.....(date to be indicated)].

6. Maximum number of contract labour/migrant workmen to be employed on a single day under the licence :

Date.....

Signature and Seal of the Licensing Officer

Renewal

[Under Rule 29 of the Contract Labour (Regulation and Abolition) Central Rules, 1971; and rule 14 of the Inter-State Migrant Workmen (Regulation of Employment and Conditions of Service) Central Rules, 1980]

Date of Renewal

Fee paid for renewal

Date of Expiry

Seal and Signature of the Licensing Officer

1.

2.

3.

* Please strike off whichever is not applicable.

Annexure

The licence is subject to the following conditions:

1. The licence shall be non-transferable.

2. The number of workmen employed as contract labour/migrant workmen in the establishment shall not, on any day, exceed the maximum number specified in the licence.

3. Except as provided in the rules, the fees paid for the grant or, as the case may be, for renewal of the licence shall be non-refundable.

4. The rates of wages payable to the workmen by the contractor shall not be less than the rates prescribed for the Scheduled Employment under the Minimum Wages Act, 1948 (11 of 1948

), where applicable, and where the rates have been fixed by agreement, settlement, award, or by the appropriate Government, not less than the rates so fixed.

5.

(a)

In case where the workmen employed by the contractor perform the same or similar kind of work as the workmen directly employed by the principal employer of the establishment, the wage rates, holidays, hours of work and other conditions of service of the workmen of the contractor shall be the same as applicable to the workmen directly employed by the principal employer of the establishment on the same or similar kind of work; provided that in the case of any disagreement with regard to the type of work the same shall be decided by the Deputy Chief Labour Commissioner (Central) whose decision shall be final.

(b)

In other cases the wage rates, holidays, hours of work and conditions of service of the workmen of the contractor shall be such as may be specified in this behalf by the Deputy Chief Labour Commissioner (Central).

6. Every contract labour/migrant worker shall be entitled to allowances, benefits, facilities etc, as prescribed in the Contract Labour (Regulation and Abolition) Act, 1970 (37 of 1970

) or the Inter-State Migrant Workmen (Regulation of Employment and Conditions of Service) Act, 1979 (30 of 1979

) and rules made there under.

7. In every establishment where 20 or more women are ordinarily employed as there shall be provided 2 rooms of reasonable dimension for the use of their children under the age of six years. One of such rooms would be used as a play room for the children and the other as bed room for the children. For this purpose the contractor shall supply adequate number of toys and games in the play room and sufficient number of cots and beddings in the sleeping room. The standard of construction and maintenance of the crèches may be such as may be specified in this behalf by the Deputy Chief Labour Commissioner (Central).

8. No women shall be employed by any contractor before 6 a.m. or after 7 p.m.:

Provided that this clause shall not apply to the employment of women in pit head baths, crèches and canteens and as

mid-wives and nurses in hospitals and dispensaries.

9. The licensee shall notify any change in the number of workmen or the conditions of work to the Licensing Officer.

10.

A copy of the licence shall be displayed prominently at the premises where the contract work is being carried on.

11.

The contractor shall comply with all the provisions of the Act and these Rules.

12.

The licensee shall, within fifteen days of the commencement and completion of each contract work, submit a return to the Inspector appointed under section 28 of the the Contract Labour (Regulation and Abolition) Act, 1970 (

37 of 1970

) intimating the actual date of the commencement or, as the case may be, completion of such contract work in Form - VII.

Form VII

[Under rule 25(2)(viii) and rule 81(3) of the Contract Labour (Regulation and Abolition) Central Rules,1971; and rule 26(3) and 239(1) of the Building and Other Construction Workers' (Regulation of Employment and Conditions of Service) Central Rules, 1998]

Notice of Commencement/completion of Work

(1)

Name of the principal employer under the Contract Labour (Regulation and Abolition) Act, 1970 (

37 of 1970

)/Employer under the Building and Other Construction Workers (Regulation of Employment and Conditions of Service) Act, 1996 (

27 of 1996

)*

(2)

LIN/Pan No.

(3)

Email Id

(4)

Mobile No.

(5)

Name of the contractor under the Contract Labour (Regulation and Abolition) Act, 1970 (

37 of 1970

) (if applicable)

(6)

LIN/Pan No.

(7)

Email Id

(8)

Mobile No.

(9)

No. and date of Certificate of Registration/Licence *

(10)

Name of person in-charge of the work :

(11)

LIN/Pan No. of person in-charge of work

(12)

Email Id of person in-charge of work

(13)

Mobile No. of person in-charge of work

(14)

The nature of work involved and the facilities, including any plant and machinery provided in the case of a building or other construction work

(15)

The arrangements for the storage of explosives, if any, to be used in the building or other construction work

I/We hereby intimate that the work (Name of work) given to (name of the contractor) having [licence/ Registration Certificate No. dated]* has been/is likely to be commenced / completed with effect from (date)/on (date).

Signature of the Principal Employer/Contractor/Employer*

To

The Inspector

.....

.....

* Please strike off whichever is not applicable.

Form VIII

[Under rule 77 of the Contract Labour (Regulation and Abolition) Central Rules, 1971; rule 241(2)(b) of the Building and Other Construction Workers' (Regulation of Employment and Conditions of Service) Central Rules, 1998; and rule 50 of the Inter-State Migrant Workmen (Regulation of Employment and Conditions of Service) Central Rules, 1980]

Service Certificate

1. Name of contractor/employer *:
2. LIN/PAN No. of the contractor/employer * :
3. Email Id of the contractor /employer *:
4. Mobile No. of the contractor/employer * :
5. Nature and location of work :
6. Name of Principal Employer *:
7. LIN/PAN No. of the Principal Employer : *
8. Email Id of the Principal Employer : *
9. Mobile No. of the Principal Employer : *
10. Name of the workman or building and other construction worker*:
11. UAN/Aadhaar No. :
12. Mobile No. :

13.

Serial Number in the Register of Workmen :

14.

Registration number, date and name of the Board if the building and other construction worker is registered as a beneficiary :

15.

Period of Employment :

16.

Designation:

Seal and Signature of Contractor

* Please strike off whichever is not applicable.

Form IX

[Under rule 223(C) of the Building and Other Construction Workers' (Regulation of Employment and Conditions of Service) Central Rules, 1998]

Certificate of Medical Examination

1.

Certificate Serial No.

Date.....

2.

Name

:

.....

Identification marks

:(1)

(2)

(i)

UAN/Aadhaar No.

:

(ii)

Mobile no.

:

3.

Name of father/husband.

:

4.

Sex

:

5.

Date of birth

: or age :

6.

Physical Fitness

:

I hereby certify that I have personally examined the above named person, son/daughter/wife of.....residing at.....who is desirous of being employed in building and construction work and that his/her age as nearly as can be ascertained from my examination is.....year and that he/she is fit for employment inas an adult/adolescent.

8. Reason for-

(1)

refusal of certificate.....

(2)

certificate being revoked.....

Signature/Left hand Thumb

impression of building worker

Signature with Seal

Medical Inspector/C.M.O.

Note:

1. Exact details of cause of physical disability should be clearly stated.

2. functional/productive abilities should also be stated if disability is stated.

Form X

[Under rule 21(1) and rule 24 of the Inter-State Migrant Workmen (Regulation of Employment and Conditions of Service) Central Rules, 1980]

[Report on recruitment and employment of migrant workmen as prescribed under sub-rule (1) of rule 21 of the Inter-State Migrant Workmen (Regulation of Employment and Conditions of Service) Central Rules, 1980, and cessation of employment of migrant workmen as prescribed under rule 24 of the Inter-State Migrant Workmen (Regulation of Employment and Conditions of Service) Central Rules, 1980, to the authorities specified under the explanation below sub-section (2) of section 12 of Inter-State Migrant Workmen (Regulation of Employment and Conditions of Service) Act, 1979.]

1. Name of the contractor.

1A.

LIN/PAN No. of the contractor :

1B.

Email Id of the contractor :

1C.

Mobile No. of the contractor :

2. Name of the sub-contractor through whom recruitment has been made.

2A.

LIN/PAN No. of the sub-contractor :

2B.

Email Id of the sub-contractor :

2C.

Mobile No. of the sub-contractor :

3. Name of the establishment.

3A.

LIN/PAN No. of the establishment :

3B.

Email Id of the establishment :

3C.

Mobile No. of the establishment :

4. Name of the Principal Employer.

4A.

LIN/PAN No. of the Principal Employer :

4B.

Email Id of the Principal Employer :

4C.

Mobile No. of the Principal Employer :

5. Name of the State in which the place of work is located.

6. Name of the State in which recruitment was made.

Serial Number

Details of migrant workman

Sex.M/F/O

Age

Permanent home address

Name and address(including Mobile No.)of
the next of kin of the migrant workman

Place and address of residence in the home State

Amount of displacement allowance paid.

Amount of outward/ return journey allowance paid

1

2

3

4

5

6

7

8

9

(a) Name

(b) UAN/Aadhaar No.

(c) Mobile No.

Amount of wages for outward/return journey period
paid.

Total wages paid

Nature of work required to be performed
Date of recruitment
Date of employment
Details of rates of wages and other allowances payable
Details of rates of wages and other allowances paid
Period of contract of employment and total days worked
Details of other service conditions
Remarks

10
11
12
13
14
15
16
17
18
19

Seal & Signature of Contractor

Date:

Submitted to

(1)

.....
(Specified authority in the State from which the migrant workman/workmen is/are employed).

(2)

.....
(Specified authority in the State in which migrant workman/workmen has/have been recruited.)

Copy forwarded to

.....
(The Principal Employer)

Seal & Signature of Contractor

Form XI

[Under rule 210(7) and rule 230(a) of the Building and Other Construction Workers' (Regulation of Employment and Conditions of Service) Central Rules, 1998]

Report of Poisoning or Occupational Notifiable Diseases/Accidents and Dangerous Occurrences*

No. and date of Registration Certificate under the Building and Other Construction Workers' (Regulation of Employment and Conditions of Service) Act, 1996 (27 of 1996

):-

1.

Name of the employer

:

2.

LIN/PAN No.

:

3.

Email id

:

4.

Mobile No.

:

5.

Name of the building worker

:

6.

LIN/PAN No.

:

7.

Email id

:

8.

Mobile No.

:

9.

Address of the building worker

:

10.

Sex and Age

:

11.

Designation

:

12.

Marital status

:

Part A ? Report of Accidents and Dangerous Occurrences

[Rule 210(7) of the Building and Other Construction Workers' (Regulation of Employment and Conditions of Service) Central Rules, 1998]:

1.

Particulars of accident

:

a.

Exact place where accident occurred

:

b.

Date

:

c.

Time

:

d.

What the injured person was doing at the time of accident

:

e.

Weather condition

:

f.

How long employed by you for this particular job

:
g
Particulars of equipment/machine/ tool involved and condition
of the same after the accident occurred.
:
h.
Brief description of the accident
:
2.
Nature of injuries.
:
a.
Fatal
:
b.
Non-fatal
:
c.
If non-fatal, state precisely the nature of injuries(describe
in detail the nature of injury, for instance fracture of right
arm, sprain etc.)
:
d.
First Aid:
:Given
Not given
e.
If not, give the reasons
:
f.
Name and designation of the person by whom first-aid was given
:
g.
If admitted to hospital, name of the hospital
:
Address of the hospital
:
Name of the Doctor.
:
Phone No.
:
3.
Mode of transport used Ambulance/ any other mode (please
specify)
:
4.
How much time was taken to shift the injured person
:
a.
If very late, state the reasons
:
:

b.

How the reporting was made ?

:

Phone / Special messenger letter/email/SMS

c.

Who visited the accident site first and what action was proposed by him?

:

d.

What are the actions taken for the investigation of the accident by the employer ? (describe about photographs/ Video film/ measurements taken, etc.)

:

5.

Particulars of persons giving witness.

a.

Name

Address

Occupation

Mobile No.

1.

2.

3.

4.

6.

Particulars in case of fatal

:

Date/Time

:

Whether worker registered with Building and Other Construction Workers' Welfare Board. If yes, give Registration Number & name of the Board

:

7.

Dangerous Occurrences as covered under the Regulation No. (Give details)

:

a.

Collapse or failure of lifting appliances, hoist conveyors, etc.

:

b.

Collapse or subsidence of soil, any wall, floor, gallery etc.

:

c.

Collapse of transmission towers, pipeline, bridges, etc.

:

d.

Explosion of receiver, vessel, etc.

:

e

Fire and explosion

:

f

Spillage or leakage of hazardous substances

:

g

Collapse, capsizing, toppling or collision of transport equipment

:

h

Leakage or release of harmful toxic gases at the construction site.

:

i.

Failure of lifting appliance, loose gear, hoist or building and other construction work machinery, transport equipment, etc.

:

8.

Certificate from the Employer or authorized signatory.

:

Part B ? Report of Poisoning or Occupational Notifiable Disease:

[Rule 230(a) of the Building and Other Construction Workers' (Regulation of Employment and Conditions of Service) Central Rules, 1998]

1.

State exactly what the patient was doing at the time of contracting the disease

:

2.

Nature of poisoning or disease from which the building worker is suffering

:

Date :

Sign.of the MO*

Seal and Signature of the employer Designation

Note : When a building worker contracts any disease specified in Schedule XII, a notice in this form shall be sent forthwith to the Director General.

(*Please strike off where not applicable)

To,

(For Part A)

5. The Inspector

6. The Board

7. The Director General

8. The Authority under section 39 of the Building and Other Construction Workers' (Regulation of Employment and Conditions of Service) Act, 1996 (

27 of 1996

)

(For Part B)

4. The Inspector

5. The Building and Other Construction Workers Welfare Board with which the worker is registered as a beneficiary.

6. The Director General* (In case the medical officer attends on the concerned building worker)

Note: If more than one person is involved, then for each person, information is to be filled up in separate forms.

Form XII

[Under rule 76 of the Contract Labour (Regulation and Abolition) Central Rules, 1971]

Employment Card

A. Name Contractor :

Passport Size Photo

A1. LIN/PAN No. of the contractor :

A2. Email Id of the contractor :

A3. Mobile No. of the contractor :

B. Nature and location of work :

C. Name of Principal Employer :

C1. LIN/PAN No. of the Principal employer :

C2. Email Id of the Principal employer :

C3. Mobile No. of the Principal employer :

D. Name of workmen :

.....

D1. UAN/Aadhaar No.:

D2. Mobile No. :

1.

Serial number in the register of workmen employed

.....

2.

Nature of Designation

.....

3.

Wages rate (with particulars of unit, in case of piece-work)

4.

Date of commencement of employment

.....

5.

Remarks

.....

Seal and Signature of Contractor

Related AI tags, queries and research notes

Translation